

Council Meeting
April 24, 2019
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The Claremont City Council held a meeting on Wednesday, April 24, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Assistant Mayor Damren at 6:30 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
At-Large Councilor Jeremy Zullo
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

Members of the Council absent were:

Mayor Charlene Lovett
Ward I Councilor Andrew O’Hearne – (arrived at 7:40 pm)

AGENDA CHANGES

Assistant Mayor Damren asked to insert the City Manager’s Report after Mayor’s notes and to include it on all agendas, not just the first meeting of the month.

MAYOR’S NOTES

Proclamation – Michael Snide

Assistant Mayor Damren presented Michael Snide of the Fire Department with a proclamation for his fundraising efforts for CHAD in the annual Battle of the Badges Hockey tournament.

Mr. Damren said May 4th will be a busy day. Events being held are the Turning Points benefit walk, Special Olympics and a demonstration by the Iron Guild at the Visitor’s Center.

Assistant Mayor Damren reminded council that there would be a Joint School Board meeting on Monday May 6th at the Sugar River Technical Center (111 South Street.)

CITY MANAGER'S REPORT

- City Manager MacLean reported that the budget went to the printer today. Also, that Public Works Director Vic St Pierre was recently in the hospital, and was not going to be available for the Saturday May 11th meeting so, with council's permission he will be adding the Public Works portion onto the May 8th agenda. Since this is both the Director and Assistant Director's first budget, he felt that it was important that Vic could present his budget. The rest will be on Saturday, May 11th at 9:00am.
- The City will be asking to submit an LChip grant application for the Opera House roof.
- 147 Main St is the property that abuts the 139 Main St. We have been negotiating with the owner of 147 Main St, where the common wall needs to come down. We will be bringing this to the council at the next meeting. Part of the negotiations is a 79E application that would come to the council which should help the owner defray some of his expenses. The difference is anticipated to be about \$4,000 per year for the 9 years.

CITIZEN'S FORUM

None

OLD BUSINESS

City Manager Search Update

Council met last night regarding the search committee. This is not the committee doing the hiring; council reserves the right to look at all the applications.

Raymond Gagnon, Mark Limoges, Lloyd Smrkovski and Joe Osgood were chosen.

Comments were made about no women being picked and they would like to appoint alternates.

Councilor Kier said she was not at last night's meeting however she would like to appoint them as regular members. Mr. Pope agreed; we dropped the ball this time and it was not intentional.

A motion was made by Mr. Pope and seconded by Ms. Kier to increase the size of the city manager search committee to 11 and appoint the 2 highest female vote getters from last night's meeting.

Councilor Stone likes the idea of the alternates does not like increasing the size of the board.

Voice Vote: motion carries 7-0

Search committee's next meeting will be April 30th in council chambers, where they will set ground rules and look at the online survey. Hope to start advertising next week.

Board of Assessors Application

Stephen Hamilton said that we will be looking for people who want to learn, are fair, can read and apply the law, with an attribute of being discrete. Knowing real estate, working closely with the Assessing Staff would all be part of the ideal candidate. This will be a great board and he can't wait to get it started.

NEW BUSINESS

Resolution 2019-23 Highway Safety Grant – Public Hearing

Police Chief Mark Chase gave a brief synopsis of the City's history partnering with the office of safety and asked that we accept this highway safety grant. Currently we use the sign board that the fire department got through a grant but it does not have the radar function. While we'd applied for this last year it wasn't funded so we encumbered money in case there was funding remaining through the Dept of Safety. We did receive a call and they will be funding this – the total is \$16,512 (and it's a 50/50 match) so, with the encumbered \$8,000 and \$8,256 from the state, the remaining \$256.00 will come out the police budget. This will also have a car counter which will help with Planning & Development as well. Chief believes this is a good investment.

RESOLUTION 2019-23

New Hampshire Highway Safety Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire has applied for and been awarded a 50/50 Grant from the New Hampshire Department of Highway Safety for the purchase of a Radar/Sign board for the Claremont Police Department in the amount of \$16,495; and

WHEREAS the City would like to accept and expend the grant funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept the Grant in the amount of \$16,495 from the New Hampshire Department of Highway Safety for the purchase of a Radar/Sign board for the Claremont Police Department; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$16,495 for the Police Department with \$8,000 to come from previously approved encumbered funds and the remaining \$247.50 from the current operating budget (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

A motion was made by Ms. Kier and seconded by Mr. Koloski to approve Resolution 2019-23 to accept and expend funds for the purchase of a new sign board.

Public hearing opened
Public hearing closed

Roll Call vote:

Lessard - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 7-0

Resolution 2019-24 Forensic Experimental Trauma Interview (FETI) Training – Public Hearing

The Claremont City Police Department, was notified that it has been awarded a grant from the State of New Hampshire Attorney General, in the amount of \$1,690, to fund the FETI Training. This training provides interviewers with a science-informed interviewing framework that maximizes opportunities for information collection and accurately documents the participant's experience in a neutral, equitable, and fair manner. Chief Chase was encouraged by the Attorney general office, and they are hosting one in Hanover. He signed up an officer as soon as he could thinking it would come out of his training budget so he was pleased to get this grant.

RESOLUTION 2019-24

**Forensic Experiential Trauma Interview
(FETI) Training**

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont the Claremont Police Department has committed to sending an officer for Forensic Experiential Trauma Interview (FETI) training, at the cost of \$1,690, and;

WHEREAS the Claremont City Police Department, has been notified that it has been awarded a grant from the State of New Hampshire Attorney General, in the amount of \$1,690, to fund the FETI Training. This training provides interviewers with a science-informed interviewing framework that maximizes opportunities for information collection and accurately documents the participant's experience in a neutral, equitable, and fair manner; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the State of New Hampshire, Attorney General's grant for FETI training, in the amount of \$1,690 and;

BE IT FURTHER RESOLVED to appropriate and expend the sum of \$1,690 and the City Manager, or his designees, are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor Pope and seconded by Councilor Koloski to approve Resolution 2019-24 FETI training grant.

Public hearing opened

Public hearing closed

Roll Call vote:

Lessard - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 7-0

Presentation by Steel Mill Solar

Director Nancy Merrill introduced Aaron Svedlow and explained that he'd come to see her about a year ago and was interested in establishing a solar farm. He was looking at land which is all zoned industrial.

Aaron Svedlow of North Light Energy, LLC, thanked the council for having him on the agenda and gave a little background. He's been doing renewable energy for the last 12 years and talked a little about the projects he's been involved with. He expects that this project will bring in about \$100,000 in taxes, felt they would be a quiet taxpayer; (not be using a lot of services). He anticipates if he does go forward with the project it would likely come on line in 2022 – this spring he would like to do wetlands studies, surveys and permitting, ground pool studies. There are about 80 buildable acres.

Councilor Koloski asked if we know what the parcel #'s area (Ms. Merrill responded with answers); Are we here for just the city property, (yes, the CDA enters into their own agreement and has already approved him access to their property to do the studies). Are these parcels currently used by others like Gary LeClair? (yes, he does use the upper parcel to grow corn).

Mr. Svedlow said that part of the land, next to Wheelabrator, is part of a wetland and he does not like to build in wetlands and normally tries to stay away from those areas.

Councilor Pope asked if this will be going before the energy committee? (yes, once studies are done to see if the project would be feasible).

Mr. Svedlow said that they would be willing to construct a gravel road for use later on which Ms. Merrill thought would help economic development in the future. Councilor Zullo asked how long of a lease this might be? (a minimum of 20-25 years). Councilor Kier asked Nancy what she was looking for tonight – Ms. Merrill said he'd like permission to access the property to conduct tests. And they are willing to pay for wetlands study and give us all the results whether they move forward with the project or not.

Councilor Stone asked if they have any projects in NH (No – have one in Ludlow, VT which is twice the size of this proposed one and they are more than welcome to come see it).

A motion was made by Ms. Kier and seconded by Ms. Pope to allow North Light Energy access to city land, (lots 187-5 & 152-7) for up to 6 months to do studies as needed. Also authorize the city manager or designees to have lease discussions with North Light Energy to bring to the council and to get the test results after.

Voice Vote: motion carried 7-0

Glynnis hart, Eagle times asked if there are renewable energy credits (yes, they go to Eversource).

Water and Wastewater Rates Update

Paul Cioffi, Water & Sewer bookkeeper gave an annual update per Ordinance 549: *The Schedule of Water Rates shall be reviewed annually to determine if the Water Rates, as adopted herein, are sufficient to meet at least the annual operating costs and existing debt obligations of the Claremont Water System.*

See Power point presentation attached.

Next Steps

- 1) Proceed with prior approved water rate increase for FY2020
- 2) Move to quarterly billing in Sept 2019
- 3) Determine if current rates and rate structure are in line with City objectives.

— Common objectives to Prioritize include:

- Do they Support Public Health?
- Do they Support EPA Regulations?
- Do they Support Full Cost Recovery including depreciation?

- Are they Affordable?
 - Do they Support the City's objective regarding bringing in new business?
 - Do they Support the City's objective regarding conservation?
- 4) Present recommendations to City Council in Early 2020
- Councilor Pope – would it be possible to see how many users we have in the 25,001 and up category? Part of the problem he sees is that we have lost some high usage users.
 - Assistant Mayor Damren is glad to see that we are going to quarterly billing this year. Will they get plenty of notice? (Ms. Walter, Finance Director stated that we will be sending out property tax bills in May and, with council permission, we could do an insert into the property bill which will cover all the water/sewer customers).
 - Councilor O'Hearne asked, when the quarterly will start, people won't be getting a tax bill and water bill at the same time? (Paul said no, they will not be the same month).

Food Truck Policy Ordinance 567 – First Reading

Councilor Damren stated that on 4/19/19 all councilors received an email from the mayor, so we can move forward on this. Councilor Stone stated that a lot of effort was put into this and reviewed other municipalities. Councilor Koloski does appreciate all time put into this. He's been in business in this community since he was 15 and sometimes, we are the most restrictive community. One would have to fill out app with Doree, pay for a criminal background, go to Planning and pay \$125.00 with planning then pay the license with the Fire Department. The background check does not mention employees. Then you need One million additional insurance which he could understand if you are on city property but on private property? It is also not allowed in the Historic District, which he does not understand. Councilor Kier said they were concerned, thought we had designated areas
The sign boards on private land didn't make sense to him.

Council would like it reviewed at the next policy committee meeting which is May 2nd.

Director Merrill also reminded the council that, if passed, there will need to be some zoning changes and the fee schedule will have to be amended.

Assistant Mayor Damren said in light of this it should be sent back to the policy committee.

A motion was made by Mr. Stone and seconded by Mr. Pope to bring this ordinance back to the policy committee.

Voice Vote: motion carried 8-0

AFSME Contract/Authorize City Manager to Execute

John MacLean thanked the councilors that have helped with this. We did find a lot of anxiety surrounding contracts but we have been able to quite quickly come to an agreement.

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to approve a Collective Bargaining Agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Clerical Union), which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2020	\$12,879
FY 2021	\$16,808
FY 2022	\$16,217

Said sums represent the additional costs attributable to the increase in salaries and benefits over those of the appropriation at current staffing levels. The increase for FY 2020 shall be covered in the 2020 budget.

Roll Call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 8-0

A motion was made by Mr. O’Hearne and seconded by Mr. Stone to approve a Collective Bargaining Agreement between the City of Claremont and AFSCME Council 93, Local 1348 (Public Works), which calls for the following increases in salary and benefits:

Year	Estimated Increase
FY 2020	\$31,882
FY 2021	\$48,900
FY 2022	\$52,020

Said sums represent the additional costs attributable to the increase in salaries and benefits over those of the appropriation at current staffing levels. The increase for FY 2020 shall be covered in the 2020 budget.

Roll Call vote:

Lessard - yes

O’Hearne - yes

Stone - yes

Damren - yes
Zullo - yes
Kier - yes
Koloski - yes
Pope - yes
Motion carried 8-0

2019 Fee Schedule

Assistant Mayor Damren pointed out a change in cemetery fees and a in the police department outside detail per union contract. All of the fees were examined by the finance committee.

Mr. O'Hearne mentioned the \$50 and \$100.00 increase in the cemetery for weekend rates.

Mr. Walter stated they are trying to recoup some of the costs which are higher on weekends and holidays. Also noted that full burials take longer.

Mr. Koloski asked why is there no airport fee schedule.

Mr. Damren said that is something the finance committee is working on, so council will be seeing an amendment to the fee schedule at a future meeting.

A motion was made by Ms. Kier and seconded by Mr. Pope to approve the 2019 fee schedule.

Mr. O'Hearne asked if the change in the Police rate included admin. Mary Walter said yes.

Voice vote: motion carried 8-0

FUTURE AGENDA ITEMS AND DIRECTIVES

- update on 139 Main St
- Budget
- Councilor Pope asked what is the estimated life of our cemetery? Do you have a plan?
Ms. Walter stated that she believed, in 2008, they split some of the fees out and created a capital reserve to look at these types of issues.

City Manager Search Update

A motion was made by Mr. Zullo and seconded by Mr. Pope to appoint Kristin Kenniston & Debora Matteau to the city manager search committee.

There was some discussion about how many votes each person received, it was noted that Kristin Kenniston received 4 votes, Debora Matteau and Marlene Boisclair each received 2 votes.

Mr. Koloski asked that the council be able to vote in light of the tie.

Motion and second retracted

Each councilor named the person they would vote for between Debora Matteau and Marlene Boisclair. Vote being 5-2 in favor of Debora Matteau (Mr. O'Hearne abstaining as he missed earlier conversation).

A motion was made by Mr. Pope and seconded by Ms. Kier to appoint Kristen Kenniston & Debora Matteau to the city manager search committee.

Roll Call vote:

Lessard - yes

O'Hearne - abstain

Stone - yes

Damren - yes

Zullo - yes

Kier - yes

Koloski - yes

Pope - yes

Motion carried 7-0 (1 abstaining)

CONSULTATION WITH LEGAL COUNSEL

None

ADJOURNMENT

At 8:53 p.m., a motion was made by Mr. Zullo and seconded by Ms. Kier to adjourn.

Voice vote: motion carried

Respectfully Submitted,

Gwendolyn R. Melcher
City Clerk